

BACKGROUNDER NO. 1-0089
CHRIS KERN

FEBRUARY 2, 1976

THE DEATH OF ERNIE MIRANDA

ANNCR:

THE STABBING OF A MINOR CRIMINAL IN THE AMERICAN STATE OF ARIZONA IS A MILESTONE OF SORTS, AND CHRIS KERN HAS A BACKGROUND REPORT.

VOICE:

ERNESTO MIRANDA WAS IN AND OUT OF TROUBLE ALMOST ALL HIS ADULT LIFE. FROM WHAT WE KNOW ABOUT HIM, HE NEVER DID AMOUT TO MUCH OF ANYTHING. HIS BIOGRAPHY IS A RECORD OF ARRESTS: KIDNAPPING, RAPE, CAR THEFT, ILLEGAL GUN AND DRUG POSSESSION, VIOLATION OF PAROLE. THERE AREN'T MANY PEOPLE WHO WILL MOURN HIS PASSING, BUT HIS NAME IS GOING TO BE REMEMBERED. ERNIE MIRANDA HELPED CHANGE THE CONSTITUTIONAL LAW OF THE UNITED STATES.

MIRANDA WENT TO TRIAL IN ARIZONA FOR RAPE AND KIDNAPPING IN 1963. HE LATER SAID THAT WHEN HE WAS ARRESTED, HE ASKED TO HAVE A LAWYER WITH HIM DURING QUESTIONING. BUT THE POLICE IGNORED HIM, AND HE CONFESSED.

ERNIE MIRANDA WAS CONVICTED ON THE BASIS OF THAT CONFESSION, BUT HE APPEALED HIS CASE IN FEDERAL COURT. MIRANDA ARGUED THAT THE ARRESTING OFFICERS SHOULD HAVE TOLD HIM THAT HE DIDN'T HAVE TO ANSWER QUESTIONS AND THAT HE HAD A RIGHT TO HAVE A LAWYER WITH HIM WHEN HE TALKED TO THE POLICE.

TODAY, POLICE ALL OVER THE UNITED STATES TELL EVERY SUSPECT JUST THAT, BECAUSE THE SUPREME COURT RULED IN 1966 THAT ERNIE MIRANDA WAS CORRECT. THE POLICE WERE UNDER A CONSTITUTIONAL OBLIGATION TO ADVISE HIM OF HIS RIGHTS.

THESE DAYS, A "MIRANDA CARD" IS STANDARD EQUIPMENT FOR AMERICAN POLICE -- A SMALL PIECE OF PAPER THAT'S AVAILABLE FOR QUICK REFERENCE WHEN AN ARREST IS MADE. MOST ARRESTING OFFICERS READ DIRECTLY FROM IT: "YOU HAVE A RIGHT TO REMAIN SILENT; ANYTHING YOU SAY MAY BE USED AS EVIDENCE AGAINST YOU IN COURT; YOU HAVE A RIGHT TO HAVE AN ATTORNEY REPRESENT YOU DURING QUESTIONING AND ALL STAGES OF THE COURT PROCEEDING; IF YOU CAN'T AFFORD A LAWYER, THE COURT WILL APPOINT ONE FOR YOU AT COURT EXPENSE."

ERNIE MIRANDA'S CONVICTION WAS OVERTURNED BY THE SUPREME COURT, BUT HE WAS EVENTUALLY RETRIED ON THE SAME CHARGES AND CONVICTED. HE GOT OUT OF PRISON IN 1972, AND THIS WEEKEND HE WAS STABBED TO DEATH IN A BARROOM FIGHT OVER A CARD GAME.

THE MAN WHO IS CHARGED WITH KILLING ERNIE MIRANDA WAS ARRESTED JUST A FEW MINUTES LATER. THE FIRST THING THE POLICE DID WAS TO ADVISE HIM OF HIS RIGHTS.

GH/PBM